

TRIPS - PATENTS

Article 27

Title: Patentable Subject Matter

Jurisdiction: International

Category: Patents

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 5, Article 27, 1994, as amended by the 2005 Protocol

Plain English Summary:

Article 27 establishes the basic international standard for patentability. An invention, whether a product or process, should generally be patentable if it is new, involves an inventive step, and is capable of industrial application, subject to permitted exclusions. It also allows Members to exclude certain subject matter, including diagnostic, therapeutic and surgical methods for treating humans or animals, and certain plants, animals, and biological processes.

For an Ayurvedic product, this is important when determining whether a new Ayurvedic formulation, product, or manufacturing process could potentially qualify for patent protection. However, TRIPS sets international standards; whether a particular Ayurvedic invention is actually patentable in India must ultimately be determined under Indian patent law.

The Exact Legal Text:

Article 27

Patentable Subject Matter

1. Subject to the provisions of paragraphs 2 and 3, patents shall be available for any inventions, whether products or processes, in all fields of technology, provided that they are new, involve an inventive step and are capable of industrial application. Subject to paragraph 4 of Article 65, paragraph 8 of Article 70 and paragraph 3 of this Article, patents shall be available and patent rights enjoyable without discrimination as to the place of invention, the field of technology and whether products are imported or locally produced.
2. Members may exclude from patentability inventions, the prevention within their territory of the commercial exploitation of which is necessary to protect *ordre public* or morality, including to protect human, animal or plant life or health or to avoid serious prejudice to the environment, provided that such exclusion is not made merely because the exploitation is prohibited by their law.
3. Members may also exclude from patentability:

(a) diagnostic, therapeutic and surgical methods for the treatment of humans or animals;

(b) plants and animals other than micro-organisms, and essentially biological processes for the production of plants or animals other than non-biological and microbiological processes.

However, Members shall provide for the protection of plant varieties either by patents or by an effective *sui generis* system or by any combination thereof. The provisions of this subparagraph shall be reviewed four years after the date of entry into force of the WTO Agreement.

Keywords/Triggers:

patentable Ayurvedic product, new Ayurvedic formulation, patentability, inventive step, industrial application, therapeutic method, biological process, patentable subject matter

ARTICLE 28

Title: Rights Conferred by a Patent

Jurisdiction: International

Category: Patents

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 5, Article 28, 1994

Plain English Summary:

Article 28 describes the exclusive rights given to a patent owner. For a patented product, the owner can prevent unauthorized parties from making, using, selling, offering for sale, or importing the product; for a patented process, the owner can prevent unauthorized use of the process and certain dealings with products obtained directly from it. For an Ayurvedic business, this is relevant when understanding what protection a patent could provide after an Ayurvedic formulation or manufacturing process has been patented. It also recognizes the patent owner's ability to assign or transfer the patent and enter into licensing contracts.

The Exact Legal Text:

Article 28

Rights Conferred

1. A patent shall confer on its owner the following exclusive rights:

(a) where the subject matter of a patent is a product, to prevent third parties not having the owner's consent from the acts of: making, using, offering for sale, selling, or importing for these purposes that product;

(b) where the subject matter of a patent is a process, to prevent third parties not having the owner's consent from the act of using the process, and from the acts of: using, offering for sale, selling, or importing for these purposes at least the product obtained directly by that process.

2. Patent owners shall also have the right to assign, or transfer by succession, the patent and to conclude licensing contracts.

Keywords/Triggers:

patent rights, patent owner rights, Ayurvedic product patent, patented formulation, patented process, patent infringement, patent licensing, patent assignment

ARTICLE 29

Title: Conditions on Patent Applicants

Jurisdiction: International

Category: Patents

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 5, Article 29, 1994

Plain English Summary:

Article 29 requires a patent applicant to disclose the invention clearly and completely enough for a person skilled in the relevant field to carry it out. A Member may also require information concerning corresponding foreign patent applications and grants. For an Ayurvedic startup or researcher, this is important because a patent application for a new Ayurvedic formulation or process must provide sufficient disclosure of the invention. This makes the quality and completeness of the technical description important when seeking patent protection.

The Exact Legal Text:

Article 29

Conditions on Patent Applicants

1. Members shall require that an applicant for a patent shall disclose the invention in a manner sufficiently clear and complete for the invention to be carried out by a person skilled in the art and may require the applicant to indicate the best mode for carrying out the invention known to the inventor at the filing date or, where priority is claimed, at the priority date of the application.
2. Members may require an applicant for a patent to provide information concerning the applicant's corresponding foreign applications and grants.

Keywords/Triggers:

patent disclosure, patent application requirements, Ayurvedic formulation disclosure, invention disclosure, patent specification, foreign patent applications, best mode, patent applicant

ARTICLE 30

Title: Exceptions to Patent Rights

Jurisdiction: International

Category: Patents

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 5, Article 30, 1994

Plain English Summary:

Article 30 allows Members to create limited exceptions to the exclusive rights granted by a patent. These exceptions must not unreasonably conflict with the normal exploitation of the patent or unreasonably prejudice the legitimate interests of the patent owner, while also considering the interests of third parties. For an Ayurvedic business, this provides the international framework for understanding that patent rights are not necessarily absolute and that certain legally permitted exceptions may exist.

The Exact Legal Text:**Article 30****Exceptions to Rights Conferred**

Members may provide limited exceptions to the exclusive rights conferred by a patent, provided that such exceptions do not unreasonably conflict with a normal exploitation of the patent and do not unreasonably prejudice the legitimate interests of the patent owner, taking account of the legitimate interests of third parties.

Keywords/Triggers:

patent exceptions, patent rights exceptions, limited patent exception, Ayurvedic patent rights, patent owner rights, third-party interests, patent exploitation, patent limitations

ARTICLE 33

Title: Term of Patent Protection

Jurisdiction: International

Category: Patents

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 5, Article 33, 1994

Plain English Summary:

Article 33 establishes the minimum international duration of patent protection. Patent protection must last for at least 20 years from the filing date. For an Ayurvedic startup or researcher, this is relevant when considering the duration of protection available for a patented Ayurvedic invention, although the exact operation of patent terms is governed by the applicable national law.

The Exact Legal Text:

Article 33

Term of Protection

The term of protection available shall not end before the expiration of a period of twenty years counted from the filing date.

Keywords/Triggers:

patent term, 20 year patent, patent duration, Ayurvedic patent duration, patent expiry, filing date, patent protection period, patent validity